

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY-----X
TAKIMA ODOM,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
RICHARD CHARLES (Tax Reg. # 939991) and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 (names and
numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,Defendants.
-----X

SUMMONS

Basis of Venue:
Place of IncidentPlaintiff Designates
Queens County
as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 16, 2021

Respectfully submitted,

/s/ Sydney Ohagan
Sydney Ohagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE RICHARD CHARLES (Shield # 939991), Narcotics Bureau, Queens, NY

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
TAKIMA ODOM,

Plaintiff,

VERIFIED COMPLAINT

-against-

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK, NYPD DETECTIVE
RICHARD CHARLES (Tax Reg. # 939991) and NYPD
OFFICERS JOHN and JANE DOE #'s 1-10 (names and
numbers are unknown at present) and Other Unidentified
members of the New York City Police Department,

Plaintiff Designates
Queens County
as the place of trial.

Defendants.

-----X
Plaintiff **Takima Odom**, by her attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of her federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected her to, among other things, false arrest, unlawful search and seizure, denial of medical treatment, conspiracy, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Takima Odom is a resident of the State of New York, Queens County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

4. NYPD DETECTIVE RICHARD CHARLES, assigned Tax Reg. # 939991, employed with the Narcotics Bureau Queens, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD DETECTIVE RICHARD CHARLES (Shield # Tax Reg. # 939991) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of her State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of the Plaintiff on December 4, 2019.

STATEMENT OF FACTS

15. On August 28, 2019, at approximately 6:21 a.m. at 41-03 Vernon Boulevard, Queens, New York, several police officers from the Narcotics Bureau Queens, and other unknown police commands, including, upon information and belief, defendant NYPD Detective Richard Charles, P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Odom.
16. On August 28, 2019 at approximately 6:21 a.m, Plaintiff was sleeping in her apartment when, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime, the defendants CHARLES and/or POLICE OFFICERS "JOHN and JANE DOE" #1-10, unlawfully entered the apartment by breaking through the door and drew their firearms at Plaintiff and her sons.
17. The defendants CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-8, purported to have a search warrant for the apartment, however no such search warrant was provided to Plaintiff even though she made several requests to view the alleged warrant.
18. Once the defendant officers entered the apartment, plaintiff was not free to disregard their questions, or walk away, or leave the scene.
19. While inside the apartment, defendants, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion to believe that the plaintiff (or any third person) had committed a crime, falsely arrested the plaintiff.
20. Upon information and belief, plaintiff was not the subjects of any search warrant. In fact, defendant officer CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-8 questioned Plaintiff Odom about her cousin, Jowan Rogers, who did not reside in the apartment and had visited it only a few times in the past year.
21. The defendant officer CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-8, then searched the entire apartment without Plaintiff's permission, or the permission of anyone else living in the apartment.
22. When transferring Plaintiff to a precinct, defendant officer CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-8 drove at a high rate of speed without engaging their lights and sirens for no justifiable reasons. Defendant officers did not place Plaintiff in a safety harness or seatbelt at any point, and Plaintiff was seated sideways while cuffed behind her back. Operating the vehicle in this manner was very unsafe, and Plaintiff feared for her safety and physical well-being, a feeling she conveyed to defendant officers, who ignored her. Plaintiff asked defendant officer driver to slow the vehicle down, but defendant officer refused. The other defendant officer in the vehicle did not make any attempt to make the officer drive in a safe and legal manner. Defendant officer driver was forced to stop short to avoid hitting a truck that was backing out of a driveway. This near-collision occurred due to the defendant officers' unsafe handling of the vehicle. Plaintiff, who was unrestrained and sitting to the side to accommodate her handcuffs, flew through the middle of the two front seat, nearly hitting the windshield. She

was then thrown back in her seat when the car stopped completely. These actions injured her pinky finger and right shoulder. This caused Plaintiff substantial pain.

23. The individual defendant officers acted recklessly when driving in an unsafe manner at a high-rate of speed. There were no emergency or exigent circumstances that would justify the manner of driving.
24. Plaintiff was transported to a local precinct and then transferred to Queens County Central Booking.
25. Plaintiff Odom was physically injured as a result of her confinement. During her transportation to the precinct, she suffered injuries when the defendant officers drove in an unsafe and reckless manner. She suffered injuries to her hand and her right shoulder.
26. Plaintiff complained of pain to her hand and shoulder while in the car, but was denied medical treatment and remained in handcuffs. She again complained of pain while in handcuffs at the precinct and requested defendant officer CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-8 remove the handcuffs. She was denied this request several times, before an officer eventually removed them.
27. While plaintiff was incarcerated at the precinct and Central Booking, defendant officers CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-8 falsely and maliciously told the New York County District Attorney's Office that plaintiff had committed the crime of possession of a controlled substance and marijuana. Plaintiff was charged with these two crimes, even though the Desk Appearance Ticket written at the precinct shortly after her arrest reflected a charge only of "possession of drug paraphernalia"
28. Based on the defendant's false statements, the New York County District Attorney's office chose to prosecute Plaintiff Odom under docket CR-028819-19QN.
29. Plaintiff was incarcerated for approximately 5 hours. During her confinement, she suffered pain to her finger and shoulder, was denied medical treatment, and was subjected to deprived, filthy and inhumane conditions.
30. Plaintiff received an Adjournment in Contemplation of dismissal at her arraignment.
31. As a result of the foregoing, Plaintiff suffered, inter alia, loss of liberty, physical injuries, economic injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of her constitutional rights. Plaintiff's two sons, including one who is intellectually disabled, were handcuffed and witnessed her arrest. She suffered long-term damage to her pinky finger, requiring medical treatment. She lost her job as a child care worker as a result of the arrest.

FIRST CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

32. Plaintiff repeats and alleges paragraphs 1 through 28 as if fully set forth herein.
33. The acts and conduct of the defendant CHARLES and/or POLICE OFFICERS JOHN and JANE DOE #1-8 constitute false arrest and false imprisonment under the laws of the State of New York. Plaintiff was subjected to illegal, improper, and false arrest by the defendant CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-8, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement.
34. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
35. As a result of the foregoing, Plaintiff's liberties were restricted for an extended period of time, she was put in fear of her safety, and she was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.
36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION**

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
38. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties;
39. The aforementioned acts of negligent hire, retention, training, and supervision by the City of New York and the New York City Police Department include, but are not limited to failing to take reasonable control/and or discipline officers who lie, fabricate evidence, engage in illegal acts toward other police officers or civilians, and/or commit perjury to cover up police misconduct and/or inflate arrest statistics;

THIRD CAUSE OF ACTION**NEGLIGENCE**

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.
41. Defendants owed a duty of care to plaintiff as she was in their custody and control.
42. Defendants breached that duty of care by driving at a high rate of speed for no justifiable reason, exposing her to physical and emotional harm.
43. As a direct and proximate cause of this unlawful conduct, plaintiff sustained injury to her hand and shoulder.
44. All of the foregoing occurred without any fault by plaintiff.
45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION**FAILURE TO INTERVENE**

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.
47. Defendant CHARLES and/or POLICE OFFICERS JOHN and JANE DOE” #1-8 had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.
48. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
49. As a result of the foregoing, plaintiff was subjected to an unlawful detention and physical and emotional injury to her person over the course of the false arrest.
50. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
51. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.
53. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
54. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries, including injury to her right shoulder and hand. She suffered extreme emotional injury including anxiety, stress, humiliation, and fear.
55. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SIXTH CAUSE OF ACTION

CRUEL AND UNUSUAL PUNISHMENT

56. The plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
57. By actions described herein, the individually named police officer defendants and correction officers, each acting individually and in concert with one another, intentionally disregarded plaintiff's medical needs. Defendants refused to provide any medical treatment to the plaintiff, despite her repeated requests they do so. This failure to provide treatment inflicted unnecessary and wanton pain upon plaintiff. As a result, plaintiff suffered severe pain and prolonged physical harm. Defendant officers CHARLES and/or POLICE OFFICERS JOHN and JANE DOE" #1-10, also repeatedly refused to remove handcuffs from Plaintiff's hand, despite her request that they do so due to the injuries she sustained while in their custody.
58. As a result of the foregoing, plaintiff was subjected to cruel and unusual punishment.
59. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF****DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
61. All of the aforementioned acts of defendants CHARLES and/or POLICE OFFICERS JOHN and JANE DOE” #1-10, their agents, servants, and employees, were carried out under the color of state law.
62. All of the aforementioned acts deprived plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
63. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
64. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF**FALSE ARREST UNDER 42 U.S.C. § 1983**

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
67. As a result of the aforesaid conduct by defendants and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants CHARLES and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
68. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, she was put in fear for her safety, and she was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
70. Defendants CHARLES and/or POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against the plaintiff.
71. Defendants CHARLES and/or POLICE OFFICERS “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Queens County District Attorney’s Office – namely, the defendants falsely informed prosecutors *inter alia*, that the marijuana and heroin were found inside Plaintiff’s apartment.
72. Defendants CHARLES and/or POLICE OFFICERS “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
73. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants CHARLES and/or POLICE OFFICERS “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
74. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF**FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

75. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
76. Defendants CHARLES and/or POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.
77. Defendants CHARLES and/or POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

78. As a result of the defendants' failure to intercede when plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH and SIXTH CLAIM FOR RELIEF

CRUEL AND UNUSUAL PUNISHMENT AND NEGLIGENCE under 42 USC § 1983

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of First, Fourth, Eighth and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's cruel and unusual punishment/unlawful-search claims (5th claim) and negligence (6th claim).

79. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.
80. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiff's federal constitutional rights as protected by 42 USC Section 1983.
81. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiff's Section 1983 ones here.
82. Plaintiff's federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of her First, Fourth, Eighth and Fourteenth Amendment rights.
83. In particular, Plaintiffs allege that Defendants' retaliatory and harassing false arrest, use of cruel and unusual punishment, unlawful search, and fabrication of evidence violated her First, Fourth, and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiff to deprivation of her liberty, seizure and search of his person, and other constitutional injuries, yet they did so with malice and retaliatory intent.
84. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterates the above allegations in support of the federal claims here.
85. In the event Plaintiff prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, he also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

SEVENTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

86. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

87. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
88. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
89. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.
90. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
91. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

92. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
93. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
94. The acts complained of deprived the plaintiffs of their rights:
- G. Not to be deprived of liberty without due process of law;
 - H. To be free from seizure and arrest not based upon probable cause;
 - I. Not to have summary punishment imposed upon them; and
 - J. To receive equal protection under the law.

WHEREFORE, TAKIMA ODOM, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
April 16, 2021

Respectfully submitted:

By: /s/ Sydney Ohagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD DETECTIVE RICHARD CHARLES (Shield # 939991), Narcotics Bureau, Queens, NY

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
April 16, 2021

/s/ *Sydney Ohagan*
Sydney O'Hagan, Esq.